

## 23CHCV02301 23CHCV02301

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-26

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Case Number: 23CHCV02301 Hearing Date: August 26, 2026 Dept: F47

Dept. F47

Date: 8/26/26

TRIAL DATE: 6/28/27

Case #23CHCV02301

MOTION FOR ISSUE,

EVIDENCE AND/OR TERMINATING SANCTIONS,

OR IN THE

ALTERNATIVE,

TO COMPEL

FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1

Motion filed on 4/10/26.

MOVING PARTY: Plaintiff Rose Adele

Cavanagh

RESPONDING PARTY: Defendant Pacifica

SL Santa Clarita LLC dba Pacifica Senior Living Santa Clarita erroneously sued  
as Pacifica Senior Living aka Pacifica Senior Living Newhall aka Pacifica  
Senior Living Santa Clarita

NOTICE: ok

RELIEF REQUESTED: An order imposing the following  
sanctions on Defendant Pacifica SL Santa Clarita LLC dba Pacifica Senior Living  
Santa Clarita erroneously sued as Pacifica Senior Living aka Pacifica Senior  
Living Newhall aka Pacifica Senior Living Santa Clarita (Defendant):

(1) Issue

Sanctions: that Defendant be prohibited from opposing Plaintiff's claims of  
Dependent and Elder Abuse/Neglect, Willful Misconduct, Negligence, Unfair  
Business Practices (Bus. & Prof. Code §§ 17200, et seq.), and Battery;

(2) Evidence

Sanctions: that Defendant be prohibited from introducing evidence of  
Plaintiff's discovery responses, the deposition testimony of Dr. Tarek Bittar,  
the deposition testimony of Dr. Matthew Lefferman, the deposition testimony of  
any fact witness, the deposition testimony of any expert witness, the trial  
testimony of any fact witness, and the trial testimony of any expert witness;

(3) Terminating

Sanctions: that Defendant's Answer To Plaintiff's Second Amended Complaint

For Damages be stricken and that a judgment by default be entered against

Defendant; or

(4) Alternatively,

Plaintiff seeks an order compelling Defendant to provide further responses to

Plaintiff's Special Interrogatories, Set 1, Nos. 3-4 and 6-8, along with

verifications.

Additionally, Plaintiff also requests an order requiring

Defendant and its counsel, Lewis Brisbois Bisgaard & Smith LLP, to pay \$2,660.00

as the reasonable costs and attorney

fees incurred by Plaintiff for this motion.

RULING: The motion is denied, in part, and

granted, in part, as set forth below.

#### SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises from the care and services provided to

Plaintiff Rose Adele Cavanagh (Plaintiff) beginning on 7/24/20 while she was a

resident at Defendant Pacifica Senior Living Santa Clarita (the Facility), a

residential care facility for the elderly.

Plaintiff alleges that all defendants owned, operated, managed and/or

controlled the Facility and were Plaintiff's "care custodians." (SAC ¶¶11, 14-15). The operative Second Amended Complaint

alleges causes of action for: (1) Dependent and Elder Abuse/Neglect, (2)

Willful Misconduct, (3) Negligence, (4) Unfair Business Practices (Business

& Professions Code 17200, et seq.) and (5) Battery.

On 3/7/24, Plaintiff served Defendant Pacifica SL Santa

Clarita LLC dba Pacifica Senior Living Santa Clarita erroneously sued as

Pacifica Senior Living aka Pacifica Senior Living Newhall aka Pacifica Senior

Living Santa Clarita (Defendant) with Special Interrogatories, Set 1. (Conlogue Decl., Ex.1). On 4/9/24, Plaintiff granted Defendant an

extension to respond to the discovery until 4/24/24. (Conlogue Decl. ¶13). On 4/24/24, Defendant electronically served unverified

responses to the discovery requests. (Conlogue

Decl. ¶14, Ex.2).

On 6/20/24, Plaintiff filed and served a motion to compel

further responses to the interrogatories which was granted, in part, on 2/14/25. Defendant was ordered to provide further,

verified responses, within 30 days, to Special Interrogatories Nos. 1 and 3-10,

and was ordered to provide verifications for all responses (Conlogue Decl., Ex.3, p.15). Defendant did not serve the ordered responses

within 30 days. (Conlogue Decl. ¶16).

On 4/7/25, Defendant Pacifica Senior Living Management,

LLC filed a notice of bankruptcy which automatically stayed this matter. On 7/24/25, the U.S. Bankruptcy Court for the

Southern District of California granted relief from the automatic stay. On 8/4/25, this Court granted Plaintiff's ex

parte application to lift the stay in this action. (Conlogue Decl. ¶12).

On 9/18/25, Plaintiff filed and served a motion for

sanctions based on Defendant's failure to comply with this Court's 2/14/25

order. On 2/27/26, the date an

opposition was due to that motion, Defendant served unverified amended

discovery responses with verification being served on 3/9/26, the day before

the hearing on the motion. (Conlogue

Decl. ¶¶17-18, Ex.4). Plaintiff contends

that Defendant's further responses to Special Interrogatories Nos. 3-4 and 6-8

were still deficient. During the meet

and confer process, Defendant agreed to provide further responses to the

subject interrogatories by 3/30/26.

(Conlogue Decl. ¶21, Ex.7). As of

the filing of the instant motion on 4/10/26, Defendant failed to provide the

further responses promised or pay the sanctions ordered by the Court. (Conlogue Decl. ¶¶22-23).

On 4/10/26, Plaintiff filed and served the instant motion

seeking an order imposing the following sanctions on Defendant:

(1) Issue

Sanctions: that Defendant be prohibited from opposing Plaintiff's claims of

Dependent and Elder Abuse/Neglect, Willful Misconduct, Negligence, Unfair

Business Practices (Bus. & Prof. Code §§ 17200, et seq.), and Battery;

(2) Evidence

Sanctions: that Defendant be prohibited from introducing evidence of

Plaintiff's discovery responses, the deposition testimony of Dr. Tarek Bittar,

the deposition testimony of Dr. Matthew Lefferman, the deposition testimony of

any fact witness, the deposition testimony of any expert witness, the trial

testimony of any fact witness, and the trial testimony of any expert witness;

(3) Terminating

Sanctions: that Defendant's Answer To Plaintiff's Second Amended Complaint

For Damages be stricken and that a judgment by default be entered against

Defendant; or

(4) Alternatively,

Plaintiff seeks an order compelling Defendant to provide further responses to

Plaintiff's Special Interrogatories, Set 1, Nos. 3-4 and 6-8, along with

verifications.

Additionally, Plaintiff also requests an order requiring

Defendant and its counsel, Lewis Brisbois Bisgaard & Smith LLP, to pay

\$2,660.00 as the reasonable costs and

attorney fees incurred by Plaintiff for this motion.

Defendant has opposed the motion and Plaintiff has filed

a reply to the opposition.

ANALYSIS

Terminating sanctions, including striking a party's answer and entering default judgment against that party are warranted for that party's failure to comply with a court's discovery order. See CCP 2023.010(g); CCP 2023.030(d); CCP 2030.300(e); CCP 2031.310(i).

Similarly, issue and/or evidence sanctions can be imposed for the same misconduct. CCP 2023.030(b), (c); CCP 2030.300(e); CCP 2031.310(i).

On 8/3/26, Defendant finally provided further, verified responses to the Special Interrogatories. (Jung Decl. ¶3; Reply, p.2:9-10).

It has been approximately two and a half years from the time the discovery was served. Additionally, the stay was lifted over a year ago. Further, the evidence indicates that Defendant agreed to provide further responses by 3/30/26. Despite the foregoing, the opposition provides no explanation/excuse for the extremely belated further responses served less than a month before the hearing on this motion.

Due to the service of the further responses, the Court declines to impose the issue, evidence and/or terminating sanctions requested at this time. However, the Court finds that

additional monetary sanctions against Defendant and Defendant's counsel are warranted in the amount of \$1,847.50 (3.25 hours multiplied by \$550/hour + \$60 filing fee). See CCP 2023.010(e), (f), (h); CCP 2023.030(a); CCP 2030.300(e); (See Conlogue Decl. ¶125).

While the Court is not imposing issue, evidence and/or terminating sanctions at this time, the Court notes that the record shows that Defendant has a history of repeatedly failing to comply with its discovery obligations and/or court orders regarding same.

Defendant and its counsel are placed on notice that based on this history, the Court may impose such sanctions for future failures to timely comply with discovery obligations and/or court orders regarding same, even if Defendant complies at the 11th hour.

#### CONCLUSION

The request for issue, evidence and/or terminating sanctions is denied. The request for an order compelling further responses to Special Interrogatories Nos. 3-4 and 6-8 is deemed moot due to the service of further, verified responses on 8/3/26.

Monetary sanctions in the amount of \$1,847.50 are imposed against Defendant Pacifica SL Santa Clarita LLC dba Pacifica Senior Living Santa Clarita erroneously sued as Pacifica Senior Living aka Pacifica Senior



Living Newhall aka Pacifica Senior Living Santa Clarita and its counsel, Lewis

Brisbois Bisgaard & Smith LLP, payable within 30 days.

The Court notes that in violation of CRC 3.1110(f)(4),

Plaintiff's counsel has failed to electronically bookmark the exhibits attached

to the motion. Counsel for the parties

are warned that failure to comply with this requirement in the future may

result in matters being continued so that papers can be refiled in compliance,

papers not being considered and/or the imposition of sanctions.

Dept. F47

Date: 8/26/26

TRIAL DATE: 6/28/27

Case #23CHCV02301

MOTION FOR ISSUE,

EVIDENCE AND/OR TERMINATING SANCTIONS,

OR IN THE

ALTERNATIVE,

TO COMPEL

FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET 1

Motion filed on 4/10/26.

MOVING PARTY: Plaintiff Rose Adele

Cavanagh

RESPONDING PARTY: Defendant Pacifica

SL Santa Clarita LLC dba Pacifica Senior Living Santa Clarita erroneously sued

as Pacifica Senior Living aka Pacifica Senior Living Newhall aka Pacifica

Senior Living Santa Clarita

NOTICE: ok

RELIEF REQUESTED: An order imposing the following

sanctions on Defendant Pacifica SL Santa Clarita LLC dba Pacifica Senior Living

Santa Clarita erroneously sued as Pacifica Senior Living aka Pacifica Senior

Living Newhall aka Pacifica Senior Living Santa Clarita (Defendant):

(1) Issue

Sanctions: that Defendant be prohibited from opposing Plaintiff's claims of

Dependent and Elder Abuse/Neglect, Willful Misconduct, Negligence, Unfair

Business Practices (Bus. & Prof. Code §§ 17200, et seq.), and Battery;

(2) Evidence

Sanctions: that Defendant be prohibited from introducing evidence of

Plaintiff's discovery responses, the deposition testimony of Dr. Tarek Bittar,

the deposition testimony of Dr. Matthew Lefferman, the deposition testimony of

any fact witness, the deposition testimony of any expert witness, the trial

testimony of any fact witness, and the trial testimony of any expert witness;

(3) Terminating

Sanctions: that Defendant's Answer To Plaintiff's Second Amended Complaint

For Damages be stricken and that a judgment by default be entered against

Defendant; or

(4) Alternatively,

Plaintiff seeks an order compelling Defendant to provide further responses to

Plaintiff's Requests for Production of Documents, Set 1, Nos. 10 and 26, along

with verifications.

Additionally, Plaintiff also requests an order requiring

Defendant and its counsel, Lewis Brisbois Bisgaard & Smith LLP, to pay \$2,947.50/\$2,822.50

(the notice of motion lists 2 different amounts) as the reasonable costs

and attorney fees incurred by Plaintiff

for this motion.

RULING: The motion is denied, in part, and

granted, in part, as set forth below.

#### SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises from the care and services provided to

Plaintiff Rose Adele Cavanagh (Plaintiff) beginning on 7/24/20 while she was a

resident at Defendant Pacifica Senior Living Santa Clarita (the Facility), a

residential care facility for the elderly.

Plaintiff alleges that all defendants owned, operated, managed and/or

controlled the Facility and were Plaintiff's "care custodians." (SAC ¶¶11, 14-15). The operative Second Amended Complaint

alleges causes of action for: (1) Dependent and Elder Abuse/Neglect, (2)

Willful Misconduct, (3) Negligence, (4) Unfair Business Practices (Business

& Professions Code 17200, et seq.) and (5) Battery.

On 3/7/24, Plaintiff served Defendant Pacifica SL Santa

Clarita LLC dba Pacifica Senior Living Santa Clarita erroneously sued as

Pacifica Senior Living aka Pacifica Senior Living Newhall aka Pacifica Senior

Living Santa Clarita (Defendant) with Requests for Production of Documents, Set

1. (Conlogue Decl., Ex.1). On 4/9/24, Plaintiff granted Defendant an

extension to respond to the discovery until 4/24/24. (Conlogue Decl. ¶14). On 4/24/24, Defendant electronically served unverified

responses to the discovery requests. (Conlogue

Decl. ¶15, Ex.2).

On 6/20/24, Plaintiff filed and served a motion to compel

further responses to the document requests which was granted, in part, on

2/14/25. Defendant was ordered to

provide further, verified responses, within 30 days, to Requests Nos. 5, 7,

10-16, 23-26, 28-29, 31-34, 38, and 41-44., and was ordered to provide

verifications for all responses (Conlogue

Decl., Ex.3, p.15). Defendant did not

serve the ordered responses within 30 days.

(Conlogue Decl. ¶17).

On 4/7/25, Defendant Pacifica Senior Living Management,

LLC filed a notice of bankruptcy which automatically stayed this matter. On 7/24/25, the U.S. Bankruptcy Court for the

Southern District of California granted relief from the automatic stay. On 8/4/25, this Court granted Plaintiff's ex

parte application to lift the stay in this action. (Conlogue Decl. ¶13).

On 9/18/25, Plaintiff filed and served a motion for

sanctions based on Defendant's failure to comply with this Court's 2/14/25

order. On 2/27/26, the date an

opposition was due to that motion, Defendant served unverified amended

discovery responses with verification being served on 3/9/26, the day before

the hearing on the motion. (Conlogue

Decl. ¶¶18-19, Ex.4). Plaintiff contends

that Defendant's further responses to Requests Nos. 10 and 26 were still

deficient. During the meet and confer

process, Defendant agreed to provide further responses to the subject

interrogatories by 3/30/26. (Conlogue

Decl. ¶22, Ex.7). As of the filing of

the instant motion on 4/10/26, Defendant failed to provide the further

responses promised or pay the sanctions ordered by the Court. (Conlogue Decl. ¶¶23-24).

On 4/10/26, Plaintiff filed and served the instant motion

seeking an order imposing the following sanctions on Defendant:

(1) Issue

Sanctions: that Defendant be prohibited from opposing Plaintiff's claims of Dependent and Elder Abuse/Neglect, Willful Misconduct, Negligence, Unfair Business Practices (Bus. & Prof. Code §§ 17200, et seq.), and Battery;

(2) Evidence

Sanctions: that Defendant be prohibited from introducing evidence of Plaintiff's discovery responses, the deposition testimony of Dr. Tarek Bittar, the deposition testimony of Dr. Matthew Lefferman, the deposition testimony of any fact witness, the deposition testimony of any expert witness, the trial testimony of any fact witness, and the trial testimony of any expert witness;

(3) Terminating

Sanctions: that Defendant's Answer To Plaintiff's Second Amended Complaint For Damages be stricken and that a judgment by default be entered against Defendant; or

(4) Alternatively,

Plaintiff seeks an order compelling Defendant to provide further responses to Plaintiff's Requests for Production of Documents, Set 1, Nos. 10 and 26, along with verifications.

Additionally, Plaintiff also requests an order requiring

Defendant and its counsel, Lewis Brisbois Bisgaard & Smith LLP, to pay

\$2,947.50/\$2,822.50 (the notice of motion lists 2 different amounts) as the

reasonable costs and attorney fees

incurred by Plaintiff for this motion.

Defendant has opposed the motion and Plaintiff has filed

a reply to the opposition.

#### ANALYSIS

Terminating sanctions, including striking a party's

answer and entering default judgment against that party are warranted for that

party's failure to comply with a court's discovery order. See CCP 2023.010(g); CCP 2023.030(d);

CCP 2030.300(e); CCP 2031.310(i).

Similarly, issue and/or evidence sanctions can be imposed for the same

misconduct. CCP 2023.030(b), (c); CCP

2030.300(e); CCP 2031.310(i).

On 8/3/26, Defendant finally provided further, verified

responses to the Requests for Production of Documents along with additional

documents. (Jung Decl. ¶2; Reply, p.2:8-12). Plaintiff contends that Defendant's

production is still deficient in relation to Request No.26. (See Reply, p.2:13-p.3:24).

It has been approximately two and a half years from the

time the discovery was served.

Additionally, the stay was lifted over a year ago. Further, the evidence indicates that

Defendant agreed to provide further responses by 3/30/26. Despite the foregoing, the opposition

provides no explanation/excuse for the extremely belated further responses

served less than a month before the hearing on this motion.

Due to the service of the further responses, the Court

declines to impose the issue, evidence and/or terminating sanctions requested at

this time. However, the Court finds that

additional monetary sanctions against Defendant and Defendant's counsel are

warranted in the amount of \$1,847.50 (3.25 hours multiplied by \$550/hour + \$60

filing fee). See CCP 2023.010(e),

(f), (h); CCP 2023.030(a); CCP 2031.310(h); (See Conlogue Decl. ¶26).

While Plaintiff contends that Defendant's production with

regard to Request No.26 is still deficient, the notice of motion only requests

further responses to Requests No.10 and 26 and does not address corresponding

production. (See Notice of

Motion, p.1:23-25, p.3:5-11). If

Plaintiff seeks to compel Defendant's compliance with its recently served or

prior responses, she must file an appropriate motion for such relief. See CCP 2031.320

While the Court is not imposing issue, evidence and/or



terminating sanctions at this time, the Court notes that the record shows that

Defendant has a history of repeatedly failing to comply with its discovery

obligations and/or court orders regarding same.

Defendant and its counsel are placed on notice that based on this

history, the Court may impose such sanctions for future failures to timely

comply with discovery obligations and/or court orders regarding same, even if

Defendant complies at the 11th hour.

#### CONCLUSION

The request for issue, evidence and/or terminating

sanctions is denied. The request for an

order compelling further responses to Requests for Production of Documents, Nos.

10 and 26 is deemed moot due to the service of further, verified responses on

8/3/26.

Monetary sanctions in the amount of \$1,847.50 are imposed

against Defendant Pacifica SL Santa Clarita LLC dba Pacifica Senior Living

Santa Clarita erroneously sued as Pacifica Senior Living aka Pacifica Senior

Living Newhall aka Pacifica Senior Living Santa Clarita and its counsel, Lewis

Brisbois Bisgaard & Smith LLP, payable within 30 days.

The Court notes that in violation of CRC 3.1110(f)(4),

Plaintiff's counsel has failed to electronically bookmark the exhibits attached

to the motion. Counsel for the parties

are warned that failure to comply with this requirement in the future may

result in matters being continued so that papers can be refiled in compliance,

papers not being considered and/or the imposition of sanctions.